

MINUTES
Town Council Meeting
April 19, 2022
113 W Columbia Ave, Telluride, Colorado 9:00 AM

COUNCIL PRESENT: Mayor DeLanie Young
Mayor Pro Tem Jessie Rae Arguelles
Councilperson Lars Carlson
Councilperson Adrienne Christy
Councilperson Dan Enright
Councilperson Meehan Fee
Councilperson Geneva Shaunette

COUNCIL ABSENT: None

MEETING INFORMATION

This meeting was held as a hybrid meeting. Councilmembers attended in-person, unless otherwise noted. Members of the public were welcome to join the meeting virtually.

CALL TO ORDER

Mayor Young called the meeting to order at 9:04am.

INTRODUCTION OF NEW TOWN MANAGER

Mayor DeLanie Young introduced new Town Manager Scott Robson, who addressed Council.

Mayor Pro Tem Arguelles asked for a moment of silence in remembrance of Darcie Gordon, who recently passed.

1. TOWN COUNCIL ACTING AS THE HISTORIC & ARCHITECTURAL REVIEW COMMISSION

- 1.a. **Town Council Call-Up of The VooDoo Lounge Affordable Housing Project:** **A)** the Insubstantial alteration to a non-designated structure (Marshal's Department Building) which does not increase its floor area, per LUC 7-203.D.4; **B)** the Insubstantial demolition of a non-designated secondary structure (shed) within the THLD, per LUC 7-203.D.7; **C)** the Minor-Scale alterations to a rated structure (Contributing shed 5SM.1606) which does not increase its floor area, per LUC 7-203.C.8; **D)** the Small-Scale demolition of a non-designated principal structure (VooDoo Lounge) within the THLD, per 7-203.B.8; and **E)** the Preliminary Large-Scale new construction in the Commercial zone district which will contain more than 5,000 s.f. of floor area, per LUC 7-203.A.2.

LEGAL DESCRIPTION: Lots 1 & 3, portions of Lots 2, 4, 6 & 8, and vacated alley ROW, Block 10, TOT

ADDRESS: TBD, 200 Block of East Pacific Ave.

ZONE DISTRICT: Commercial

OWNER: Town of Telluride

APPLICANT: CCY Architects

STAFF MEMBER: Jonna Wensel, Historic Preservation Director

Town Clerk Tiffany Kavanaugh distributed public comment received after packet publication under separate cover (Exhibit 1a1).

Mayor Young introduced the item, reviewed Town Council's purview and the public hearing process.

Attorney Geiger provided input. Mayor Young, Mayor Pro Tem Arguelles, Councilmembers Carlson, Christy, Enright, Fee, and Shaunette verbally confirmed their qualifications to serve as HARC pursuant to Land Use Code Section 9-203.A. Attorney Geiger and Director Wensel responded to questions.

Mayor Young asked each Councilmember to declare if any ex-parte communication occurred. Mayor Young announced a text message she received regarding a Go Fund Me page (Exhibit 1a6). Councilperson Shaunette announced she had posted meeting information on social media. Mayor Pro Tem declared she had asked members of the public to resend public comment letters.

Historic Preservation Director Jonna Wensel presented via projection (Exhibit 1a2).

Applicants Maura Trumble and Todd Kennedy with CCY Architects presented (Exhibit 1a3).

Director Wensel, Applicants Trumble and Kennedy, and Attorney Geiger responded to questions.

PUBLIC COMMENT

Public comment was received from Douglas Tooley, Mark Hebert, Eric Cummings, Mike Wentworth, Peter Lundeen, Zelda Tenenbaum, Stephen Johnson, Dave Valentine, Donald Rosenthal, Judy Haas, Stacy Lake, Joe Solomon, Rosie Cusack, Mark Shambaugh, Steve Messinger, and Sherri Harvey via a pre-recorded message and slideshow (Exhibit 1a4).

RECESS

A recess was taken from 11:02am - 11:12 a.m. for Council to review public comment received from Steve Johnson (Exhibit 1a5).

PUBLIC COMMENT CONTINUED

Public comment resumed and was received from Chance Leoff, Greg Craig, and Steve Johnson.

CONTINUATION

Council agreed additional time was needed and agreed to continue the hearing to the end of the meeting agenda. Applicants Trumble and Kennedy announced they are unable to rejoin the meeting later in the day due to prior commitments.

HEARING RESUMPTION

The Town Council Call-Up of The VooDoo Lounge Affordable Housing Project resumed at 6:17 p.m.

Council discussed the March 16th HARC conditions of approval. No action was taken. Council agreed to continue the hearing to April 25, 2022 at 9:00 a.m. when Applicants Trumble and Kennedy are available to respond to questions.

MOTION

To continue the Town Council Call-Up of The VooDoo Lounge Affordable Housing Project to 9:00 a.m. on Monday, April 25th.

Moved by Mayor Pro Tem Arguelles, seconded by Councilperson Enright.

VOTE

A roll call vote was taken, and the motion PASSED, 5-2.

Councilpersons Carlson and Fee dissenting.

LUNCH BREAK (12:08pm - 1:02pm)

2. PUBLIC COMMENT

Public comment was received from Douglas Tooley and Eric Cummings.

3. PRESENTATIONS AND PROCLAMATIONS

3.a. Introduction of New Equipment Operator Carlos Figuera-Hernandez

Streets and Utilities Superintendent Rich Estes introduced Carlos Figuera-Hernandez, who addressed Council.

3.b. A Proclamation Of The Town Council Of The Town Of Telluride, Colorado Proclaiming May 1st - May 7th, 2022 as the 53rd Annual Municipal Clerks Week

Mayor Young read the proclamation. Clerk Kavanaugh addressed Council.

3.c. A Proclamation Of The Town Council Of The Town Of Telluride, Colorado, Proclaiming May 9th Valley Floor Day

Mayor Young read the proclamation. Attorney Geiger announced the Valley Floor film will air on PBS, Thursday, April 21st.

4. APPOINTMENTS TO BOARDS AND COMMISSIONS

4.a. Reading Of Boards & Commissions Vacancies

Mayor Young read the boards and commissions vacancies.

5. CONSENT CALENDAR

5.a. Approval of Minutes - Regular Meeting March 22, 2022

MOTION

To approve the Consent Calendar with an amendment to the arrival time for Mayor Pro Tem Arguelles.

Moved by Mayor Pro Tem Arguelles, seconded by Councilperson Fee.

VOTE

A roll call vote was taken, and the motion PASSED, 7-0.

6. WORK SESSIONS

6.a. Consideration Of A Request By The Telluride Science Research Center to Waive Building Permit Fees and A Refund Of A Real Estate Transfer Tax (RETT) Payment

Clerk's note: Councilperson Carlson recused himself at 1:25 p.m. due to a conflict of interest.

Telluride Science Research Center Executive Director Mark Kozak presented the request via the shared screen function (Exhibit 6a1). Planning & Building Director Ron Quarles and Attorney Geiger responded to questions.

After discussion, Council unanimously supported the refund of the RETT payment, agreed not to waive the plan check fee, and asked Director Kozak to return with concrete examples of how TSRC benefits the Town of Telluride. Director Kozak will discuss with the TSRC Board of Directors and return with data.

6.b. Telluride Historical Museum Annual Report

Clerk's note: Councilperson Carlson returned at 2:27 p.m.

Telluride Historical Museum Executive Director Kiernan Lannon presented the 2021 Annual Report via the shared screen function (Exhibit 6b1). Director Lannon responded to questions.

6.c. Marshal's Annual Report

Chief Marshal Josh Comte presented the 2021 Annual Report. Chief Comte responded to questions from Council.

7. PUBLIC HEARING

7.a. Consideration Of An Appeal Filed By Joe Solomon On March 3, 2022 Of The February 17, 2022 Liquor Licensing Authority Hearing Officer's Decision To Approve The Renewal Of The Arts Liquor License For Telluride Council For The Arts and Humanities d/b/a as The Telluride Transfer Warehouse For Use At 201 South Fir Street, Telluride, Colorado 81435

Clerk's note: Councilpersons Enright and Shaunette recused themselves at 2:50 p.m. due to a conflict of interest.

Clerk Kavanaugh presented background on the item, reviewed documents of record, and standards for Council review.

Attorney Joe Solomon presented.

Public comment was received from legal counsel for the Transfer Warehouse Neil Cherubin.

MOTION

To affirm Hearing Officer Major's February 17, 2022 decision to renew the arts liquor license for the Telluride Council For The Arts and Humanities d/b/a The Transfer Warehouse with the following findings:

- 1. Hearing Officer Major did not act arbitrarily and capriciously, abuse their discretion, exceed their jurisdiction, act without proper evidence or a sufficient factual basis, or otherwise fail to act in accordance with the law.*

Moved by Mayor Pro Tem Arguelles, seconded by Councilperson Christy.

VOTE

A roll call vote was taken, and the motion PASSED, 5-0.

- 7.b. Second Reading and Approval Of An Ordinance Of The Town Council Of The Town Of Telluride, Colorado Amending Chapter 6, Article 2 Of The Telluride Municipal Code Amending Liquor Training Requirements, Adding Section 6-2-200 Festival Permits, And Adding Section 6-2-210 Takeout And Delivery Permits

Clerk's note: Councilpersons Shaunette and Enright rejoined the meeting.

Clerk Kavanaugh presented.

There was no public comment.

MOTION

To approve on second reading An Ordinance Of The Town Council Of The Town Of Telluride, Colorado Amending Chapter 6, Article 2 Of The Telluride Municipal Code Amending Liquor Training Requirements, Adding Section 6-2-200 Festival Permits, And Adding Section 6-2-210 Takeout And Delivery Permits.

Moved by Councilperson Christy, seconded by Councilperson Shaunette.

VOTE

A roll call vote was taken, and the motion PASSED, 7-0.

8. ACTION ITEMS

- 8.a. Introduction and First Reading Of An Ordinance Of The Town Council Of The Town Of Telluride, Colorado Amending Telluride Municipal Code Section 7-2-20 Noise and 7-2-50 General Penalty

Clerk's note: Clerk Kavanaugh distributed public comment received after packet publication under separate cover (Exhibit 8a1).

Assistant Town Attorney Allie Slaten presented details of the proposed ordinance, corrected a non-substantive typographical error in the proposed ordinance in Section 7-2-20 (a), and responded to questions.

Public comment was received from Greg Craig, Stephen Johnson, Arthur Goldberg, Mark Lowes, and Joe Solomon.

MOTION

To approve on first reading An Ordinance Of The Town Council Of The Town Of Telluride, Colorado Amending The Town Of Telluride Municipal Code At Section 7-2-20 Noise And 7-2-50 General Penalty and direct the town clerk to set this matter for a public hearing on second reading on the same day on May 10, 2022.

Moved by Councilperson Enright, seconded by Mayor Pro Tem Arguelles.

FRIENDLY AMENDMENT

Councilperson Enright and Mayor Pro Tem Arguelles agreed to an amendment to the motion to strike "Christmas Eve" and to add "Dia de los Muertos" to Section 7-2-20 (2)(c). Holidays.

VOTE

A roll call vote was taken, and the motion PASSED, 6-1.

Councilperson Christy dissenting.

- 8.b. Consideration Of A Recommendation Of The Planning And Zoning Commission To Engage The Professional Services Of Design Workshop To Develop The 2022 Telluride Community Vision And Action Plan And To Authorize The Town Manager To Enter Into A Contract Agreement With Design Workshop

Senior Planner Phil Taylor presented background on the selection process for the 2022 Telluride Community Vision and Action Plan. Planning and Building Director Ron Quarles and Planner Taylor responded to questions.

MOTION

To engage the professional services of Design Workshop to develop the 2022 Telluride Community Vision and Action Plan and to authorize the Town Manager to enter into a contract agreement with Design Workshop.

Moved by Mayor Pro Tem Arguelles, seconded by Councilperson Enright.

VOTE

A roll call vote was taken, and the motion PASSED, 7-0.

- 8.c. Consideration Of A Resolution of the Town Council of the Town of Telluride, Colorado, Adopting the Town of Telluride Climate Action Plan

Environmental & Engineering Division Manager Karen Guglielmone presented. Cascadia Consulting Group, Angela Pietschmann, Kristina Zeynalova, and Megan Lee addressed Council.

Public comment was received from Greg Craig and Douglas Tooley.

MOTION

To approve a Resolution Of The Town Council Of The Town Of Telluride, Colorado Adopting The Town Of Telluride Climate Action Plan (2022) as presented and striking the word "require" in CR2.3 and replacing it with "encourage."

Moved by Mayor Pro Tem Arguelles, seconded by Councilperson Carlson.

VOTE

A roll call vote was taken, and the motion PASSED, 6-1.

Councilperson Enright dissenting.

MOTION

To convene as the Liquor Licensing Authority.

Moved by Mayor Pro Tem Arguelles, seconded by Councilperson Fee.

VOTE

A roll call vote was taken, and the motion PASSED, 7-0.

RECESS

A recess was taken from 4:39 p.m. - 4:49 p.m.

9. TELLURIDE LIQUOR LICENSING AUTHORITY

- 9.a. Consideration Of A New Hotel & Restaurant Liquor License For Tesuto Igikai dba Kazahana For Use At 126 E Colorado Avenue, Unit B, Telluride, Colorado 81435

Clerk's note: Councilperson Enright and Mayor Pro Tem Arguelles recused themselves at 4:50 p.m. due to a conflict of interest.

Assistant Clerk Melissa Mollan presented details of the application. Applicant Josh Klein addressed Council. Clerk Mollan and Applicant Klein responded to questions.

There was no public comment.

MOTION

Move that the Telluride Liquor Licensing Authority of the Town of Telluride, Colorado, approve the issuance of a Hotel and Restaurant License to The Tesuto Igikai dba Kazahana for use at 126 E. Colorado Avenue, Unit B, Telluride, Colorado, based on the following findings:

- Public Notice of the hearing on the Application was published and posted on the property as required by Colorado Law; and*
- The applicant is qualified to obtain a liquor license pursuant to C.R.S. Section 44-3-307; and*
- The premises is in a location eligible to conduct the proposed liquor licensed business pursuant to C.R.S. Section 44-3-313 and the zoning laws of the Town of Telluride; and*
- The applicant is entitled to possession of the premises for which the application is made;*
- The inhabitants of the neighborhood, by definition the town limits, desire an additional establishment that serves liquor; and*
- The needs of the neighborhood are not met by the existing outlets.*

And with the following conditions to be met prior to issuance of the license:

- Inspection of the premises is completed by the Clerk to the Telluride Liquor Licensing Authority to confirm the accuracy of the diagram of the proposed licensed premises submitted; and*
- Town Clerk's Department must be notified of any change of manager within 5 days of a change; and*
- The State of Colorado License is received by the Clerk's Department indicating approval of the application by the Colorado Department of Revenue, Liquor Enforcement Division.*

As well as the following condition met within 90 days of issuance of the license:

- Proof of completion of a liquor service workshop by Melisa Pignataro submitted to the Clerk to the Telluride Liquor Licensing Authority.*

Moved by Councilperson Shaunette, seconded by Councilperson Christy.

VOTE

A roll call vote was taken, and the motion PASSED, 5-0.

Clerk's note: Mayor Pro Tem Arguelles returned to the meeting at 5:05 p.m.

- 9.b. Consideration Of A New Lodging & Entertainment Liquor License For Ah Haa School for the Arts dba Ah Haa School for the Arts For Use At 155 W. Pacific Ave. Telluride, Colorado, 81435
- Clerk Mollan presented details of the application.

Applicant Marty Wollesen responded to questions related to responses submitted on the New Liquor License Application Questionnaire.

There was no public comment.

MOTION

Move that the Telluride Liquor Licensing Authority of the Town of Telluride, Colorado, continue today's public hearing to May 10th to consider the issuance of a Lodging and Entertainment License for Ah Haa School doing business as Ah Haa School for the Arts for use at 155 W. Pacific Avenue, Telluride, Colorado, with a condition to update the entire questionnaire within our application to reflect all potential liquor license uses on the premise.

Moved by Councilperson Christy, seconded by Councilperson Shaunette.

FRIENDLY AMENDMENT

Councilpersons Christy and Shaunette agreed to amend the motion to include a specific time for the continuance of "May 10th at 10:00 a.m."

VOTE

A roll call vote was taken, and the motion PASSED, 6-0.

Clerk's note: Councilperson Enright returned to the meeting.

10. ADMINISTRATIVE REPORTS

10.a. Manager's Report

Manager Robson discussed his first few days as town manager and plans for his initial weeks on the job. Councilperson Christy provided an update on hiring for the San Miguel Regional Housing Authority. Attorney Geiger provided input.

10.b. Attorney's Report

There was no Attorney's Report.

10.c. Council Reports

10c1. Scheduling Of Appeal Hearing: Planning and Zoning Commission Approval PUD Amendment For The Transfer Warehouse

Council agreed to schedule the appeal hearing for May 10th.

Councilperson Shaunette discussed the 2022 Council Goals and Objectives and the Southwest Area Conceptual Plan.

Councilperson Enright reported on meetings of the Telluride Housing Authority (THA) Subcommittee and Sunnyside Project Committee and discussed a sign-on letter in support of the Colorado Wilderness Act.

Councilperson Fee reported on meetings of the Colorado Flights Alliance and the Gondola Subcommittee.

Mayor Pro Tem Arguelles reported on meetings of the Watershed Coalition, Vending Subcommittee, upcoming meetings of the Open Space Commission and an upcoming Town Council Retreat, discussed an economic impact study for short-term rentals, and discussed a

possible joint work session with San Miguel County on becoming a sanctuary city. Clerk Kavanaugh, Manager Robson, and Attorney Geiger provided input and responded to questions.

Councilperson Carlson provided an update on the Telluride Regional Airport Authority.

Mayor Young reported on meetings with the Environmental Protection Agency, THA Subcommittee, Historic and Architectural Review Commission, Sunnyside Project Committee, upcoming Town Council Retreat, Region 10, Colorado Area of Ski Towns, Housing Task Force, Ecology Commission, San Miguel Watershed Coalition, Commission For Community Assistance, Arts, and Special Events, reported on the One to One Sled Derby, testimony at the state, upcoming San Miguel County Planning Commission, Diversity Equality Inclusion training, and the Vending Subcommittee meeting. Mayor Young sought feedback whether Council would like a work session on adding additional vending locations in town. Council unanimously agreed to a future work session.

10.d. Related Organization Reports

There were no Related Organization Reports.

10.e. Comment on Payments

There were no comments received.

11. TELLURIDE HOUSING AUTHORITY

There were no items for the Telluride Housing Authority.

12. EXECUTIVE SESSION

12.a. **Affordable Housing** - Executive Session To Discuss the Purchase, Acquisition, Lease, Transfer, or Sale of Real, Personal, or Other Property Interest Under C.R.S. Section 24-6-402(4)(a) and Section 4.6.A of the Telluride Home Rule Charter

Clerk's note: Council did not move into executive session. Item 12.a. was not considered.

ADJOURNMENT

The meeting was adjourned by unanimous consent at 7:40 p.m.

Town Clerk Tiffany Kavanaugh